

5. CROW, ET AL. v. CHILD, 24CV1535**(A) Motion to Compel Responses to Form Interrogatories (Set Two)****(B) Motion to Deem Matters Admitted****Motion to Compel Responses to Form Interrogatories (Set Two)**

On March 11, 2026, pursuant to Code of Civil Procedure section 2030.290, defendant SpecialtyCare (“defendant”) filed an amended notice of motion to compel plaintiff Janet Crow’s (“plaintiff”) verified responses, without objection, to defendant’s Form Interrogatories (Set Two). Defendant’s motion includes no request for a monetary sanction.

Plaintiff filed no opposition.

If a party to whom interrogatories were directed fails to serve a timely response, the propounding party may move for an order compelling responses. (Code Civ. Proc., § 2030.290, subd. (b); see *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403–404.) Generally, the party who failed to serve a timely response to the discovery request waives “any objection” to the request, “including one based on privilege” or the protection of attorney work product. (Code Civ. Proc., § 203.290, subd. (a).)

In this case, defense counsel declares defendant electronically propounded the discovery request upon plaintiff on January 23, 2026. (McKinley Decl., ¶ 3 & Ex. A.) Accordingly, plaintiff’s deadline to serve her verified response was February 25, 2026 (30 calendar days extended by two court days for electronic service). (Code Civ. Proc., §§ 1013, subd. (e), 2030.260, subd. (a).) As of March 6, 2026 (the date the original notice of motion was filed), plaintiff had served no verified response. (McKinley Decl., ¶ 5.) Therefore, the motion is granted.

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Motion to Deem Matters Admitted

On March 11, 2026, pursuant to Code of Civil Procedure section 2033.280, defendant SpecialtyCare (“defendant”) filed an amended notice of motion to deem matters admitted against plaintiff Janet Crow (“plaintiff”). The amended notice of motion includes no request for monetary sanctions.⁷

Plaintiff filed no opposition.

A party served with requests for admission must serve a response within 30 days. (Code Civ. Proc., § 2033.250.) Failure to serve a response entitles the requesting party, on motion, to obtain an order that the genuineness of all documents and the truth of all matters specified in the requests for admission be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) When such a motion is made, the court must grant the motion and deem the requests admitted unless it finds that prior to the hearing, the party to whom the requests for admission were directed has served a proposed response that is in substantial compliance with the provisions governing responses. (Code Civ. Proc., § 2033.280, subd. (c); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776, 778; see also *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 395–396 [“two strikes and you’re out”].)

In this case, defense counsel declares defendant electronically propounded Requests for Admission (Set One) upon plaintiff on January 23, 2026. (McKinley Decl., ¶ 3 & Ex. A.) Accordingly, plaintiff’s deadline to serve her response was February 25, 2026 (30 calendar days extended by two court days for electronic service). (Code Civ. Proc., §§ 1013, subd. (e), 2033.250, subd. (a).) As of March 6, 2026 (the date the original notice of motion was filed), plaintiff had served no response.

The court grants defendant’s motion to deem matters admitted.

⁷ The court notes that defense counsel’s declaration includes a request for a monetary sanction in the amount of \$2,200.00. A request for discovery sanctions, however, must be included in the notice of motion. (Code Civ. Proc., § 2023.040.)

TENTATIVE RULING # 5:

MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES (SET TWO): THE MOTION TO COMPEL IS GRANTED. PLAINTIFF JANET CROW SHALL SERVE A VERIFIED RESPONSE, WITHOUT OBJECTION, TO DEFENDANT SPECIALTYCARE'S FORM INTERROGATORIES (SET TWO) WITHIN 30 DAYS OF THE NOTICE OF ENTRY OF ORDER.

MOTION TO DEEM MATTERS ADMITTED: THE MOTION TO DEEM MATTERS ADMITTED IS GRANTED. THE TRUTH OF ALL MATTERS SPECIFIED IN DEFENDANT SPECIALTYCARE'S REQUESTS FOR ADMISSION (SET ONE) PROPOUNDED UPON PLAINTIFF JANET CROW ARE DEEMED ADMITTED.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.